

Court No. - 39

Case :- WRIT - C No. - 2265 of 2019

Petitioner :- Karvendra Pratap Singh

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Manoj Kumar Singh, Ashutosh Pratap Singh

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble B. Amit Sthalekar, J.

Hon'ble Suresh Kumar Gupta, J.

Heard Shri Manoj Kumar Singh, learned counsel for the petitioner, learned standing counsel for the respondents no. 1 and Shri Baleshwar Chaturvedi, learned counsel for the respondents no. 2 and 3.

The petitioner is seeking quashing of the provisional assessment order dated 3.9.2018 as well as the demand notice dated 10.12.2018. The allegation against the petitioner is of unauthorized use of electricity. There is no averment in the writ petition that the petitioner has ever filed his objection against the provisional assessment order as per the requirement of Section 126 (3) of the U.P. Electricity Act, 2003. Since the allegation against the petitioner is of unauthorized use of electricity, the petitioner has a remedy by approaching the Executive Engineer in terms of Clause 6.8 of the U.P. Electricity Supply Code, 2005.

We therefore, **dispose of** this writ petition with a direction that if the petitioner appears before the Respondent no. 3-Executive Engineer Electricity Distributions Division (Revenue), Dakshinanchal Vidyut Vitran Nigam Ltd. District Etah on 31.1.2019 at 11.00 A.M. along with his objection/representation and a certified copy of this order, the Respondent no.3 shall consider and decide the same in accordance with law, within a further period of fifteen days.

It is made clear that the Court has not adjudicated the claim of the petitioner on merit.

Order Date :- 22.1.2019

o.k.